

Banned before it arrived

Signal	On April 28, 2026, Maryland made it illegal for large grocers and delivery apps to charge one shopper more than another using that shopper’s personal data. The law took effect October 1.
Read	Lawmakers and the grocery workers’ union moved after a test of the delivery app Instacart found shoppers paying different prices for the same item. Grocers said they do not do it, so a narrow ban passed without a fight.
Cost	The state expects to spend about \$325,000 a year enforcing it. Fines, paid by violators to the state, are not expected to matter to revenue. Grocers keep shelf screens (electronic price tags), loyalty deals and store-wide pricing; compliance is mostly record-keeping.

The simple version

Think of Uber surge pricing on a gallon of milk. Raising the price for everyone at 5 pm is still legal. Raising it only for you, because your app history says you will pay, is not. Grocery stores of 15,000 square feet or more, and delivery apps of any size, are covered; smaller stores are not.

Same item, same store, up to 23% apart



Consumer Reports and Groundwork Collaborative test, December 2025. Hatched = illustration.

The money walk

1. The trigger \$1,200 Researchers’ estimate of a family’s yearly cost swing on Instacart. Instacart disputes it.	2. Oct 1 No fee Covered stores and apps stop personal-data price hikes. Nothing to file.	3. Notice 45 days Attorney General notice comes first. Fix it and no case is filed.	4. Fine \$10,000 Maximum per uncured violation, paid to the state. Only the state can sue.	5. The state \$325,000 State’s estimated yearly enforcement cost: one lawyer, one technologist.
--	---	--	---	--

The alternative, side by side

Maryland: ban it		New York: label it	
Personal-data price hike	Banned	Personal-data price hike	Allowed, with a label
Shopper sees	Nothing new	Shopper sees	“Set by an algorithm using your personal data”
Fine per violation	Up to \$10,000	Fine per violation	Up to \$1,000
Repeat fines	Up to \$25,000 each	Repeat fines	No total cap
Who carries the risk	Grocer or app	Who carries the risk	Shopper reads, then decides

Lowest price (index)	Widest gap	Shoppers tested	Instacart’s reply	= Highest price Est
\$1.00	23%	437	Tests halted	\$1.23

Each state tightens a different screw

Four state rules on personal-data pricing, by date in force. Darker = goes further in that column.

	Personal-data pricing	Who it covers	Shelf screens	In force
New Jersey	Banned	Groceries and essentials	New ones paused	Aug 2027
Connecticut	Banned, no fix window	All retailers, delivery apps	Not reported	2027*
Maryland	Higher prices banned	Big grocers, delivery apps	Untouched	Oct 2026
New York	Allowed, with a label	Any seller	Untouched	Nov 2025

* Connecticut per two legal analyses; statute not read, and they differ on the start date (Feb 1 or Jul 1, 2027). New Jersey signed Jul 23, 2026; its pause on new shelf screens starts Feb 1, 2027.

Trigger	A December 2025 test of Instacart with 437 shoppers found same-item price gaps; Instacart halted its tests and the FTC (Federal Trade Commission) opened an inquiry.
Next	More than 40 bills in at least 24 states as of August 2026, most still proposals. UFCW (United Food and Commercial Workers) drives the campaign.

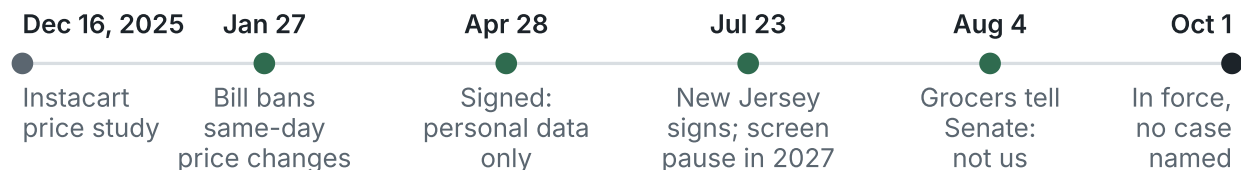
What it looks like for you: the public rules

Covered if	Any Maryland store of 15,000 square feet or more that sells tax-exempt food, or any service delivering that food, whatever its size.
Paperwork	None. No filing or registration.
Fix ("cure") window	45 days after a notice from the Attorney General's Consumer Protection Division.
Penalty	Up to \$10,000 per violation, \$25,000 per repeat. State action only; no private lawsuits.
Still legal	Loyalty prices, promotions, opt-in data-for-discount deals, store-wide price moves, and shelf screens, at \$5 to \$20 for a standard label.

What each side leaves out

Side	Claim	Omission	What settles it
Sponsors and the union	Big companies use analytics "against us"; one test found the same item up to 23% apart, about \$1,200 a year for a family	That test was of a delivery app; state leaders "have not pointed to specific instances occurring in Maryland" (WYPR, Apr 28, 2026)	A state notice naming a Maryland store or app; none as of Oct 4
Retailers and grocer groups	"Not a common industry practice for us at all"; shelf screens do not set prices per person	Over two-thirds of food retailers now use shelf screens, up from 47% a year earlier: the tool that makes repricing instant	Store pricing records, which the law requires no one to file
Headlines	"Maryland bans dynamic pricing"	The signed law covers only personal-data price hikes; store-wide repricing and shelf screens stay legal	The chapter text, already settled

The twist: the ban shrank before it passed



Fact The signed law lists 10 exceptions, including promotions, loyalty-program prices, cost-based differences such as shipping, subscriptions, and any price a shopper agrees to in exchange for their data.

The everyday version

Airlines and hotels change prices all day, and travelers accept it. Wendy's found the limit in February 2024: its chief executive's talk of \$20 million in new digital menu boards and of dynamic pricing tests became "surge pricing" headlines, and within two weeks the company said "Wendy's will not implement surge pricing." Instacart followed the same arc, halting its tests within a week of the December 2025 study.

Where it breaks: airline and burger prices move for everyone at once; groceries are a weekly necessity with few substitutes, and Maryland targets a price set by who you are, not when you shop.

Three questions for an executive

How many of our prices, online or in store, use any shopper-level data as an input?

Then: map each one in Maryland to one of the 10 exceptions, or switch it off before a notice arrives.

How many of our Maryland stores clear 15,000 square feet, and what share of our sales there run through delivery apps?

Then: that is your Maryland scope; Connecticut and New Jersey cover more, so check them before 2027.

How many days would we need to show, from logs, what set one shopper's price?

Then: if more than 45, you cannot prove a fix inside the cure window; fund price-input logging now.

What to watch

Mid-Nov 2026 End of the first possible 45-day fix window. Confirms: no state action naming a Maryland store. Breaks: one does.

Feb 1, 2027 New Jersey's pause on new shelf screens begins. Confirms: the hardware fight moves to other states. Breaks: Maryland adds a screen ban.

Researched by NodeJ Deep Research. For the full research report, write to julian@nodej.ai.